

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On January 25, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: On November 13, 2022, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L. with NIF B82064833 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The claimant states that the respondent, without prior notice, included their personal data in its solvency file on August 12, 2021.

They state that they became aware of the inclusion of their personal data in the respondent's solvency file because they have been prevented from accessing loan agreements with financial entities, as well as formalizing the contracting of certain services such as changing telephone and electricity companies, due to their data being listed in the aforementioned file.

Additionally, they indicate having requested access from the respondent on August 12 and 30, 2021, without receiving a response.

On October 14, 2022, they requested access again, receiving a response on October 25, 2022, indicating that their personal data had been included in the aforementioned file at the request of BBVA since August 12, 2021.

They provide, along with their complaint, a report from the Bank of Spain dated February 21, 2022, with the following conclusions:

"1. It is observed, by the respondent, that:

- i. Regarding the card contract, the entity's actions could constitute a breach of the transparency and customer protection regulations for banking services by failing to comply with the duty to safeguard documents justifying the legal relationship maintained with its client.
 - ii. Regarding the request for a document that records the concepts applied by the use of the card, this Department considers that the respondent has not deviated from good banking practices in its actions since the entity has provided its client with the requested documentation.
 - iii. Regarding the costs of formalizing their mortgage operation, no pronouncement can be issued for the reasons stated in section ii. Regarding the costs of formalizing the report.
2. This Department is not competent to assess, decide, or pronounce on the possible damages that may have been caused to clients and users of financial services. Such issues may be submitted, if deemed appropriate, to the corresponding judicial bodies."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), on January 9, 2023, the aforementioned complaint was forwarded to the respondent, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

On January 12, 2023, the respondent submitted a written response to the transfer, providing the

following documentation:

- A copy of the responses from ASNEF-EQUIFAX to the requests for the exercise of the rights of access, dated August 24, 2021, September 1, 2021, and October 17, 2022, and cancellation, dated December 21, 2022, regarding data protection made by the claimant, which includes the email address to which the response should be notified.

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- Copy of the response dated January 12, 2022, sent to the claimant informing them of the actions taken and again providing their situation in the ASNEF-EQUIFAX file.

- Copy of the Certification dated January 10, 2022, issued by the Service Provider for Generation, Printing, and Provision of Postal Services - Correos and/or Unipost-SERVINFORM, S.A., certifying the date of inclusion of the notification in question, along with the rest of the communications issued in the process, and the date it was made available to the postal service (August 17, 2021).

- Copy of the notification of inclusion.

- Delivery note and receipt at the Correos XXXXXXXX office and Hispapost, dated August 17, 2021, with its admission value date.

- Copy of the return of said notification, with the reasons indicated by the postal service, "Incorrect Address."

Additionally, ASNEF-EQUIFAX states among other points the following:

- That after consulting its Consumer Service regarding the files registered in the name of Mr. A.A.A., holder of DNI ***NIF.1, it informs that the requests for which a response is claimed, dated August 12, 2021, and August 30, 2021, were processed on its part under the file numbers ***EXPEDIENTE.1 and ***EXPEDIENTE.2.

- That both requests were managed as a right of access, informing Mr. A.A.A. of his situation in the ASNEF-EQUIFAX files.

- That the responses were issued on August 24, 2021, and September 1, 2021, respectively, via email, as requested by the claimant.

- That after reviewing said files in light of the present claim, they have been able to verify that the email used for their response was incorrect, as it was sent to the address ***EMAIL.1, while the correct address is ***EMAIL.2, which prevented its receipt by the recipient.

- That subsequent to these two files, the file ***EXPEDIENTE.3 was processed, received on October 14, 2022, and which Mr. A.A.A. mentions in his claim, where access to his personal data was provided, and file ***EXPEDIENTE.4, dated December 11, 2022, where a right of cancellation was managed, proceeding to remove the data provided by the entity BBVA, S.A., on December 21, 2022.

- That as stated in the aforementioned access files to the data contained in the ASNEF-EQUIFAX file, the claimant's data was included in said file on August 12, 2021, at the request of BBVA, due to a debt arising from a credit card contracted with that entity. The date of data viewing is recorded as September 11, 2021. Each of the files contains the Consultation History, with the entities that have accessed the claimant's data in the six months prior.

- Regarding the absence of notification of the inclusion of their data in the file at the request of BBVA, S.A. in the ASNEF-EQUIFAX file, it indicates that, after consulting the Auxiliary Notification file in the ASNEF-EQUIFAX file, it is recorded that it was notified via the reference notification

***NOTIFICACIÓN.1, issued on August 13, 2021, through ordinary postal mail to the address provided by the creditor, that is, ***DIRECCIÓN.1. However, it informs that it is recorded as returned, registered in our systems since October 29, 2021.

- And that a response has been prepared for Mr. ***DIRECCIÓN.1, sent by certified mail with acknowledgment of receipt to the postal address indicated in the present claim, informing of the actions taken and again providing their situation in our files.

THIRD: On February 13, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claimant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

- On August 13, 2021, the respondent sent a notification of inclusion in the ASNEF-EQUIFAX file to the respondent, and that said notification was returned without being delivered to said party, indicating the postal service as the reason for the return, "Incorrect Address." The data of the notification's return was incorporated into the information system of the respondent on 29/10/2021.
- There is no record that the claimant has taken any action aimed at notifying the inclusion of the claimant's data after the date on which they became aware of the return of the notification by the postal services.
- That the claimant exercised the right of access in data protection matters before the respondent on August 12, 2021, August 30, 2021, and October 14, 2022. Requesting that the response to the exercises of the right of access be sent to their email ***EMAIL.2.
- That the respondent processed the exercises of the right of access from August 2021, under the file numbers ***EXPEDIENTE.1 and 5/16

***FILE.2; issuing responses to the same on August 24, 2021, and September 1, 2021, respectively. To the email address ***EMAIL.3.

- That said responses were sent to the email address ***EMAIL.3, which is different from the one provided by the claimant for sending ***EMAIL.2, resulting in the claimant never receiving the response issued by ASNEF-EQUIFAX, which led to the filing of the third complaint dated October 14, 2022.
- That this third complaint under file ***FILE.3 was answered by ASNEF-EQUIFAX on October 17, 2022, and the response was sent to the correct email address ***EMAIL.3, which corresponded to the one provided by the claimant when presenting the three exercises of the right of access regarding data protection before the defendant.
- This last response was submitted by the claimant along with the complaint filed with the AEPD.
- Furthermore, it is noted that the request for data cancellation made by the claimant on December 11, 2022, was processed by the defendant under file ***FILE.4, with the response date to said request being December 21, 2022, and the email address for sending said response being the email address provided by the claimant.

On June 16, 2023, information requests were sent to BBVA and ASNEF-EQUIFAX.

BBVA was requested to provide the following information:

- 1.- Copy of contract number ***XXXX of the SHOP CAR MASTERCARD card registered by BBVA in the name of the claimant.
- 2.- Copy of contract number ***XXXX registered by BBVA in the name of the claimant.
- 3.- Documentation justifying the payment requests made to the claimant regarding the debt.
- 4.- Copy of the contract signed between BBVA and ASNEF-EQUIFAX for the inclusion of the claimant in the debtor registry managed by ASNEF-EQUIFAX.
- 5.- Documentation justifying the communications of the claimant's data for their inclusion/exclusion in the ASNEF-EQUIFAX debtor file.
- 6.- Any other information deemed appropriate.

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In its response to said information request, BBVA makes, among others, the following statements:

- It provides a copy of the claimant's application for the Mercadona card dated December 5, 2011. Along with a document titled "REGULATION MERCADONA CARD" in which section one states that

the card will be issued by the entity UNOE BANK S.A. Indicating that the contract for the aforementioned card was registered in BBVA's systems with number ***XXXX on January 16, 2012.

- And stating that, due to the termination of the collaboration agreement between Mercadona and BBVA, the aforementioned card was replaced by the BBVA Mastercard Shop Card number ***XXXX, indicating that this card was sent to the claimant's address on December 16, 2019. It provides a document of information regarding the termination of the collaboration agreement between both entities along with the document of "GENERAL CONDITIONS OF THE MASTERCARD SHOP CARD." Although the documents provided are generic communication documents regarding the termination of the agreement between Mercadona and BBVA and the general conditions of the new card, they do not identify the person to whom they are addressed, nor do they indicate the date on which they are issued, and these documents are not signed.

- Furthermore, it sends movements of the aforementioned BBVA Mastercard Shop Card from January 16, 2020.

- To try to justify the existence of payment requests for the debt to the claimant before their inclusion in the ASNEF-EQUIFAX file on August 12, 2021, it provides certificates issued by ASNEF-EQUIFAX and SERVIFORM, S.A. stating that payment of the debt was requested on June 15, 2021, and July 15, 2022, in which it is noted that those payment requests were sent by regular mail on June 16 and 17 and July 16 and 17, 2021, to the claimant's postal address, without any indication that the mentioned requests were returned.

- It also provides a copy of the contract signed between BBVA and ASNEF-EQUIFAX for the inclusion of debtors in the debtor registry managed by ASNEF-EQUIFAX.

ASNEF-EQUIFAX was requested to provide the following information:

1.- Copy of the contract signed between BBVA and ASNEF-EQUIFAX for the inclusion of the claimant as a debtor in the debtor registry managed by ASNEF-EQUIFAX.

2.- Documentation justifying the communications between ASNEF-EQUIFAX and BBVA for the inclusion/exclusion in the ASNEF debtor file of the claimant's data.

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3.- Documentation of the actions taken by ASNEF-EQUIFAX with BBVA, due to the impossibility of notifying the inclusion of the claimant in the ASNEF-EQUIFAX debtors file, due to "Incorrect Details" as indicated by the postal service.

4.- Any other information deemed appropriate.

In its response to the request, ASNEF-EQUIFAX makes the following statements, among others:

- It provides a copy of the contract signed between BBVA and ASNEF-EQUIFAX for the inclusion of debtors in the debtors register managed by ASNEF-EQUIFAX.

- Regarding the inclusion of the claimant's data in the file, it states that the data transferred to the ASNEF-EQUIFAX file by BBVA, S.A. was registered on 12/08/2021 due to non-payment of a credit card as the account holder, and there was an outstanding balance. This operation was assigned the corresponding code.

- The cancellation of the data was carried out on December 21, 2022, and on December 11, 2022, the claimant sent a letter to ASNEF-EQUIFAX exercising their right to cancellation.

- Subsequently, after describing the procedure followed for all Notification of Inclusion letter processes, it indicates that in the specific case of the claimant, according to the query to the Auxiliary Notification file in the ASNEF-EQUIFAX file, it is noted that the inclusion of their data by BBVA S.A. was notified under the reference communication ***NOTIFICACIÓN.1, issued on August 13, 2021, via ordinary postal mail to the address provided by BBVA S.A., namely, ***DIRECCIÓN.2.

- Since October 29, 2021, there is a record of the return of the same, with the reason selected by the postal service being 01, which corresponds to "Incorrect Details."

- Upon receiving the return of the notification, as previously indicated, a request for confirmation was generated to the entity, dated October 29, 2021, to review the notification's mailing address and

proceed to remove the data if it is incorrect or confirm it as correct. The entity, with user ***USUARIO.1, indicates that the address is correct and consequently, the data remains registered in the file.

FIFTH: According to the report collected from the AXESOR tool, the entity ASNEF-EQUIFAX, SERVICIOS DE INFORMACIÓN SOBRE SOLVENCIA Y CRÉDITO, S.L. is a small company established in 1998, with a business volume of €23,879,231 in 2022.

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I

Competence

According to the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

Article 15 of the GDPR recognizes the right of access, stating the following:

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

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2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject submits the request electronically, and unless they request that it be

provided in another way, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

III

Proposed Sanction

In accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the claimant requested their right of access from the respondent on August 12 and 30, 2021.

In response to the exercise of their right of access, the respondent processed their access request under case numbers ***EXPEDIENTE.1 and ***EXPEDIENTE.2; issuing responses to them dated August 24, 2021, and September 1, 2021, respectively, to the email address ***EMAIL.3, despite the fact that the email address provided was ***EMAIL.2, resulting in the claimant never receiving either of the two responses issued.

These facts led to the submission of the third access request made by the claimant dated October 14, 2022, which was correctly responded to on October 17, 2022, as it was sent to the correct email address.

These facts are corroborated by reports prepared by ASNEF-EQUIFAX in response to the access rights exercised by the claimant, indicating that several entities have consulted the claimant's data while they have been registered in the file.

In summary, and without prejudice to the outcome of the instruction, it is considered that the respondent has violated Article 15 of the GDPR by failing to respond to the first two access requests, as they were sent to an incorrect email address, as acknowledged by the respondent, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: b) the rights of data subjects under Articles 12 to 22; (...).”

For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year limitation period for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

k) The hindrance or obstruction or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.”

IV

The fines imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

Therefore, it is appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and as provided in Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

Article 83.2 of the GDPR states that:

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j).

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In deciding the imposition of an administrative fine and its amount in each individual case, the following will be duly taken into account:

a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or

purpose of the processing operation in question as well as the number of affected parties and the level of damages they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;

d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In the present case, without prejudice to the outcome of the investigation, the following aggravating factors have been taken into account:

- Linkage of the activity of the investigated party with the processing of personal data.

- The development of the business activity carried out by the entity requires continuous processing of personal data.

- The entity carries out a high volume of personal data processing for the development of its activity.

- Nature of the damages caused to the affected individuals or third parties, specifically, the claiming party states that as a result of the inclusion of their data in the ASNEF-EQUIFAX file, they have been prevented from accessing loans from other entities and from contracting certain services such as changing telephone and electricity providers.

For all these reasons, it is considered that the sanction to be imposed would be 5,000 euros under Article 15 of the GDPR.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L., with NIF B82064833, for the alleged infringement in accordance with the provisions of Article 58.2.i) of the GDPR, for the alleged infringement of Article 15 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

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THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint lodged by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in art. 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 5,000 (FIVE THOUSAND EUROS), for the infringement of article 15 of the GDPR, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L., with NIF B82064833, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in the present procedure. With the application of this reduction, the sanction would be established at [Insert the corresponding text of 4,000 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at 4,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with that which corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are to be applied, the amount of the sanction would be established at 3,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction.

In the event that it opts to proceed with the voluntary payment of either of the amounts indicated above, 4,000 or 3,000 euros, it must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 (BIC/Code SWIFT: XXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it adheres.

Likewise, it must send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that according to the provisions of article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On February 7, 2024, the respondent has proceeded to pay the sanction in the amount of 4,000 euros, making use of one of the two reductions provided in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been established.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202213707, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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